

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Vredenburg	Team: Team # 2	CCRB Case #: 200710299	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Sunday, 07/15/2007 10:15 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	Precinct: 75	18 Mo. SOL 1/15/2009	EO SOL 1/15/2009	
Date/Time CV Reported Wed, 07/18/2007 10:35 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 07/18/2007 10:35 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Vito Nicoletta	01372	935400	075 PCT
2. POM Angelo Baez	11631	896980	075 PCT
3. POF Jennifer Lavelle	20760	933921	075 PCT
4. POM John Chiam	06228	920121	075 PCT
5. POM Mack Lipinski	20935	932175	075 PCT
6. SGT Domenico Colavito	00355	883666	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Tyrone Kirton	11641	899431	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Angelo Baez	Abuse: Near the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Angelo Baez determined to stop § 87(2)(b)	§ 87(2)(b)
B.POM Vito Nicoletta	Abuse: At the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Vito Nicoletta frisked § 87(2)(b)	§ 87(2)(b)
C.POM Vito Nicoletta	Abuse: At the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Vito Nicoletta searched § 87(2)(b)	§ 87(2)(b)
D.POF Jennifer Lavelle	Abuse: At the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Jennifer Lavelle frisked § 87(2)(b)	§ 87(2)(b)
E.POF Jennifer Lavelle	Abuse: At the corner of § 87(2)(b) and § 87(2)(b) and near the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Jennifer Lavelle searched § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
F.POM Vito Nicoletta	Discourtesy: Near the corners of § 87(2)(b) and at the 75th Precinct stationhouse, Officer Vito Nicoletta spoke obscenely and/or rudely to § 87(2)(b)	
G.POM John Chiam	Force: Near the corner of § 87(2)(b) in Brooklyn, Officer John Chiam pointed his gun at § 87(2)(b)	
H.POM Vito Nicoletta	Force: Near the corner of § 87(2)(b) in Brooklyn, Officer Vito Nicoletta used physical force against § 87(2)(b)	
I.POM John Chiam	Force: Near the corner of § 87(2)(b) in Brooklyn, Officer John Chiam used physical force against § 87(2)(b)	
J.POM Vito Nicoletta	Off. Language: Near the corner of § 87(2)(b) in Brooklyn, Officer Vito Nicoletta made remarks to § 87(2)(b) based upon race.	
K.POM Vito Nicoletta	Off. Language: Near the corner of § 87(2)(b) in Brooklyn, Officer Vito Nicoletta made remarks to § 87(2)(b) based upon ethnicity.	
L.POM Vito Nicoletta	Abuse: Near the corner of § 87(2)(b) in Brooklyn, Officer Vito Nicoletta threatened to arrest § 87(2)(b)	
M.POM Mack Lipinski	Abuse: At the 75th Precinct stationhouse, Officer Mack Lipinski strip-searched § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Synopsis

§ 87(2)(b) filed this complaint with the CCRB using the agency call-processing system on July 18, 2007. On July 15, 2007, at approximately 10:15 PM, § 87(2)(b) obtained marijuana from a friend, whose name was not provided, in an apartment on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) met his girlfriend, § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b) and they walked on § 87(2)(b) and were stopped by Officer Vito Nicoletta, Officer Jennifer Lavelle, and Sergeant Domenico Colavito at the corner of § 87(2)(b) and § 87(2)(b) (allegation A). Officer Nicoletta conducted a frisk and search of § 87(2)(b) (allegations B and C) and Officer Lavelle conducted a frisk and search of § 87(2)(b) (allegations D and E). During the search of § 87(2)(b) Officer Nicoletta recovered marijuana from § 87(2)(b)'s right sock and in looking at § 87(2)(b)'s Trinidad and Tobago driver's license, allegedly stated, "What's this shit? This is not a valid ID. You got to go to jail" (allegation F). § 87(2)(b) then ran from the officers north on § 87(2)(b) § 87(2)(b).

Near the corner of § 87(2)(b) and § 87(2)(b) Officer John Chiam pointed his weapon at § 87(2)(b) (allegation G), which caused § 87(2)(b) to stop and go to the ground. Officer Nicoletta arrived to the scene and pushed § 87(2)(b)'s head against the ground with his hands and then stomped his head to the ground twice (allegation H). Officer Chiam kicked § 87(2)(b) once on the right side of his body (allegation I). Officer Nicoletta allegedly called § 87(2)(b) a "dickhead" and a "nigger" (allegation J). § 87(2)(b) further alleged that in putting him into the prisoner van, Officer Nicoletta stated, "You think you're fucking smart. Later I'm going to take off those handcuffs and beat your ass" and used the word "fucking" in ordering § 87(2)(b) into the prisoner van (allegation F). Officer Lavelle again searched § 87(2)(b) and Officer Nicoletta obtained her Trinidad and Tobago driver's license, at which point he stated, "Well, I don't want to see this. Go back to your country, go back to where you came from. We don't want you here. If you want to buy drugs, go back to your home and buy drugs" and made a throwing motion with the driver's license in his hand (allegation K). Officer Nicoletta ordered § 87(2)(b) not to walk down § 87(2)(b) on her way home and stated, "I don't care, if you walk there we'll lock you up and throw you in the cells" (allegation L). At the 75th Precinct stationhouse, Officer Nicoletta allegedly told § 87(2)(b) "Your face looks like shit. It's not that it looks like shit now, it's like it's extra shit now because you were already born looking like shit" (allegation F). § 87(2)(b) was strip searched by Officer Lipinski at the 75th Precinct stationhouse (allegation M). § 87(2)(g), § 87(4-b)

§ 87(2)(g)

§ 87(2)(g)

“What’s this shit? This is not a valid ID. You got to go to jail.” § 87(2)(b) mentioned this discourteous allegation only in his CCRB statement. § 87(2)(b) “panicked” and ran from Officer Nicoletta, Officer Lavelle, and Sergeant Colavito north on § 87(2)(b) towards § 87(2)(b).

At the corner of § 87(2)(b) and § 87(2)(b) an officer identified as Officer John Chiam exited an unmarked police vehicle and ran towards § 87(2)(b) with his gun pointed at him. He described Officer Chiam as a 5’9”, 170-pound Asian male in his thirties. § 87(2)(b) stopped running in the driveway of § 87(2)(b) (encl.). § 87(2)(b) positioned himself face down with his legs stretched out and his hands stretched out on the ground at about shoulder level. Officer Chiam handcuffed § 87(2)(b) who did not resist being handcuffed and let his hands be put at his back. In filing the complaint with IAB, § 87(2)(b) stated that Officer Chiam said, “You motherfucker, we got you now.” He did not repeat this in any other statements. Officer Nicoletta, Officer Lavelle, and Sergeant Colavito came to the driveway as § 87(2)(b) was being handcuffed. Officer Nicoletta approached § 87(2)(b) as he was lying handcuffed on the ground, grabbed some of § 87(2)(b)’s braids, and pushed his face against the ground, causing the right side of his face to hit the ground, and said, “You dickhead.” § 87(2)(b) commented that he wasn’t resisting arrest and Officer Nicoletta said, “Shut the fuck up, you nigger.” In filing the complaint with the CCRB, § 87(2)(b) recalled the comment as, “You dickhead, you nigger.” He also added that Officer Nicoletta said “Shut the fuck up” when § 87(2)(b) responded. Officer Nicoletta again grabbed some of § 87(2)(b)’s braids, and pushed his head against the ground, causing the right side of his face to hit the ground a second time. § 87(2)(b) did not try to raise himself off the ground or make contact with any officers before or while interacting with Officer Nicoletta. § 87(2)(b) noticed that the unmarked police van was at the entry to the driveway. Officer Chiam approached § 87(2)(b) on his right side and kicked § 87(2)(b) near his stomach once as he was lying on the ground. The kick caused some temporary pain, but did not leave any marks. § 87(2)(b) said that he thought Officer Chiam used his right leg. Officer Nicoletta stepped back from § 87(2)(b) a few feet and “stamped” down on his head, causing his nose and the front of his head to hit the ground. In filing the complaint with the CCRB and IAB, § 87(2)(b) said that Officer Nicoletta stamped down on his head twice. § 87(2)(b) tried to move his legs in an attempt to stand up, as his face hurt and he did not want to be subject to further physical force while lying on the ground. Officer Nicoletta told § 87(2)(b) not to move. The officers did not use further physical force against § 87(2)(b).

Officer Nicoletta took § 87(2)(b)’s shoes off and said, “Get in the fucking van, you aint getting in the van with shoes.” In filing the complaint with the CCRB, § 87(2)(b) said that Officer Nicoletta commented, “You’re going to jail, you fucking nigger” and another officer said, “Get in the van, you piece of shit.” These remarks were not alleged in any other statements by § 87(2)(b). § 87(2)(b) stood up and entered the van and Officer Nicoletta said, “You think you’re fucking smart. Later I’m going to take off those handcuffs and beat your ass.” In filing the complaint with IAB, § 87(2)(b) said that an officer said, “It aint over yet, you motherfucking dickhead. When I get you nigger inside tonight I’m going to beat the shit out of you.” As § 87(2)(b) was in the police van, he noticed Officer Nicoletta ask § 87(2)(b) for identification near the police van. § 87(2)(b) provided her Trinidad and Tobago license to Officer Nicoletta. Officer Nicoletta stated, “What the fuck? I don’t want to see this shit. Go back to your fucking country; we don’t want to see you here. Fucking nigger.” Officer Nicoletta had § 87(2)(b)’s identification in his hand and acted as if he was going to throw it. § 87(2)(b) told Officer Nicoletta not to throw the identification. Officer Lavelle took § 87(2)(b)’s purse, opened it, and looked through the contents of the purse. § 87(2)(b) did not see Officer Lavelle search § 87(2)(b) any further. After her purse was returned, Officer Nicoletta told § 87(2)(b) not to walk on § 87(2)(b).

§ 87(2)(b) was in the driveway for a total of about ten minutes. An officer identified as Officer Tyrone Kirton was driving and Officer Chiam sat in the passenger seat of the van. § 87(2)(b) described Officer Kirton as a black male. § 87(2)(b) who used to be § 87(2)(b)’s barber, was in the prisoner van, as were two other male prisoners whom § 87(2)(b) did not know. When § 87(2)(b) exited the police van at the 75th Precinct stationhouse, he asked Officer Nicoletta for his shoes and Officer Nicoletta replied, “No, you aint getting no fucking shoe.” § 87(2)(b) walked into the stationhouse without any shoes on and Officer Nicoletta asked another officer how § 87(2)(b)’s face appeared. The officer said it was fine and Officer Nicoletta lodged § 87(2)(b) in a holding cell. § 87(2)(b) asked Officer Nicoletta, “How my face look?” Officer Nicoletta responded something to the effect of, “Your face looks like shit. It’s not that it looks like shit now, it’s like it’s extra shit now because you were already born looking like shit.” When filing the complaint with IAB, he recalled the statement as, “Your face looks fucked up. It’s not just fucked up now, you was born fucked up, so you was born with a fucked up face, so you was already fucked

up.” Officer Nicoletta asked § 87(2)(b) “What happened to you? You fell?” Officer Nicoletta then returned § 87(2)(b) s shoes without laces.

While § 87(2)(b) was in the holding cell, an officer, identified as Officer Mack Lipinski, whom § 87(2)(b) described as a 5’8”, 160-pound white male in his mid thirties and who appeared “clean cut” and was wearing a hat, walked up to § 87(2)(b) and told him to drop his pants and squat. § 87(2)(b) dropped his pants and squatted, but was not told to take his shirt off. No further items were recovered and no one else watched or could see § 87(2)(b). § 87(2)(b) was in the second to last holding cell from where he entered.

§ 87(2)(b) said that he had never been to jail or been arrested and said he did not request medical attention from any of the officers because he wanted to be in jail for as little time as possible. He also did not think that any of the officers would be receptive to the request. On § 87(2)(b) § 87(2)(b) went to § 87(2)(b) and had cuts to the right side of his face, received during the incident, cleaned. On the same date, IAB officers interviewed § 87(2)(b) about the incident (encl. 5a-b).

§ 87(2)(b) s arrest photo (encl. 9a) shows cuts to the right side of § 87(2)(b) s face, as do photos taken of § 87(2)(b) at the CCRB on July 25, 2007 (encl. 8e-g).

On September 7, 2007, § 87(2)(b) was shown four photo arrays (encl. 10a-e) by Inv. Vredenburg and Inv. Figura. The first photo array consisted of Officer Nicoletta and five filler photographs. § 87(2)(b) identified Officer Nicoletta as the subject officer who stopped him and used physical force against him. The second array consisted of Officer Lavelle and five other filler photographs. § 87(2)(b) was unable to identify Officer Lavelle and did not select any of the filler photographs. The third photo array consisted of Sergeant Colavito and Officer Kirton and four filler photographs. § 87(2)(b) identified Officer Kirton as an officer he saw during the incident and who was polite to him when he saw him near the holding cells; § 87(2)(b) did not identify Sergeant Colavito or any of the filler photographs. The fourth photo array consisted of Officer Lipinski and five filler photographs. § 87(2)(b) selected Officer Lipinski as the officer who told him to drop his pants while he was in a holding cell.

Results of Investigation

Civilian Statements

§ 87(2)(b) a 5’9”, 155-pound black female with brown eyes and black hair who is from Trinidad and Tobago and is § 87(2)(b) s girlfriend, made statements concerning the incident in her CCRB interview on July 26, 2007 (encl. 11a-d). § 87(2)(g)

§ 87(2)(b) said that she stood at the corner of § 87(2)(b) and § 87(2)(b) and did not interact or exchange any items with anyone as § 87(2)(b) met with one of his friends on § 87(2)(b). § 87(2)(b) was wearing a white t-shirt and jeans and was carrying a purse in which she did not have any contraband. When § 87(2)(b) returned, he and § 87(2)(b) walked north on § 87(2)(b) for less than five minutes when a black unmarked police vehicle stopped and Officer Nicoletta, Officer Lavelle, and Sergeant Colavito exited the vehicle. § 87(2)(b) described Officer Nicoletta as a 5’5”, bald white male dressed in his early thirties and she described Sergeant Colavito as an older white male with gray hair and about 5’10”. § 87(2)(b) described Officer Lavelle as a 5’7”, 150-pound white female with brown hair in a pony tail and about 27 years old. Officer Nicoletta approached § 87(2)(b) and told Officer Lavelle to deal with § 87(2)(b). While Officer Nicoletta searched § 87(2)(b) s pockets, Officer Lavelle told § 87(2)(b) to spread her arms and legs and then patted down the exterior of her clothing after informing § 87(2)(b) that she needed to search her. § 87(2)(b) said that Officer Lavelle and Officer Nicoletta partially blocked her vision of § 87(2)(b) and thus she did not see the entirety of § 87(2)(b) s interaction with Officer Nicoletta. Officer Lavelle asked § 87(2)(b) for her purse and § 87(2)(b) gave Officer Lavelle her purse, which had only her keys, wallet, and money in it. Officer Lavelle took out her flashlight, unzipped the purse, and looked into it. After doing so without removing any items, Officer Lavelle returned the purse and told § 87(2)(b) “You’re all right.” Officer Lavelle did not search any of § 87(2)(b) s pockets. § 87(2)(b) observed Officer Nicoletta look through § 87(2)(b) s wallet and recover a small bag of marijuana from his sock, which § 87(2)(b) later informed § 87(2)(b) he had obtained from his friend on § 87(2)(b). Officer Nicoletta instructed Officer Lavelle to handcuff § 87(2)(b) and she took out her handcuffs and Officer Nicoletta moved towards § 87(2)(b) he twisted away, and ran on § 87(2)(b) towards § 87(2)(b). Officer Nicoletta, Officer Lavelle, and Sergeant Colavito chased after § 87(2)(b) and § 87(2)(b) picked up § 87(2)(b) s right sock and followed them.

§ 87(2)(b) ran straight to § 87(2)(b) where she noticed a small crowd of people, with whom she was not familiar, and § 87(2)(b) was stopped in a driveway on § 87(2)(b) close to the intersection with § 87(2)(b). § 87(2)(b) was handcuffed, not moving, and lying face down on the driveway at the end of which a police van was parked with three to four individuals in it; § 87(2)(b) did not know why § 87(2)(b) stopped running or how he got to the ground. Five to six additional officers besides Officer Nicoletta, Officer Lavelle, and Sergeant Colavito were at the scene as § 87(2)(b) arrived. One of these officers, identified as Officer Chiam, § 87(2)(b) described as a 5'10" Asian male with black hair. Another, identified as Officer Lipinski, § 87(2)(b) described as a 5'9" white male of medium build and in his thirties dressed in cargo shorts. She could not describe the other officers in detail. § 87(2)(b) walked to within ten feet of § 87(2)(b) and heard Officer Nicoletta say, "You nigger, you dickhead, why were you running?" Officer Nicoletta raised his right leg and "stamped" on § 87(2)(b)'s head, making contact with the back of his head. Officer Chiam approached § 87(2)(b) on his right side, and kicked him once near his stomach. Officer Nicoletta stamped on § 87(2)(b)'s head once more and § 87(2)(b) did not see any further physical force used against § 87(2)(b). § 87(2)(b) did not hear anymore verbal interaction between § 87(2)(b) and the officers. She saw § 87(2)(b)'s shoes lying on the ground in the driveway and picked them up. Officer Nicoletta told § 87(2)(b) to drop the shoes and she explained that she was assuring that § 87(2)(b) did not lose any items. Officer Nicoletta asked § 87(2)(b) if she had picked up any additional drugs and she answered that she had not. Officer Nicoletta instructed Officer Lavelle to search § 87(2)(b) again and Officer Lavelle patted down the exterior of § 87(2)(b)'s clothing and put her hands in § 87(2)(b)'s pants pockets. Officer Lavelle looked through § 87(2)(b)'s purse again, though § 87(2)(b) was unsure if the purse was unzipped at this point. Officer Nicoletta asked § 87(2)(b) to provide identification and she gave Officer Nicoletta her Trinidad and Tobago driver's license, commenting that she was only visiting the New York City temporarily. Officer Nicoletta commented that the driver's license was not real and was invalid, made a throwing motion with the license, and said, "Well, I don't want to see this. Go back to your country, go back to where you came from. We don't want you here. If you want to buy drugs, go back to your home and buy drugs." § 87(2)(b) interpreted this as degrading her ethnic background and told Officer Nicoletta that she needed her license and he returned it. Officer Chiam and Officer Nicoletta walked § 87(2)(b) to the prisoner van and put him inside of it; § 87(2)(b) had blood near his right eye, although it was not flowing down his face.

§ 87(2)(b) asked an unidentified white male officer dressed in uniform where § 87(2)(b) was going to be taken and the officer informed § 87(2)(b) that § 87(2)(b) would be taken to the 75th Precinct stationhouse. The officer began to provide § 87(2)(b) with directions, but Officer Nicoletta told the officer to leave the scene. § 87(2)(b) approached Officer Nicoletta and he affirmed that § 87(2)(b) was going to be taken to the 75th Precinct stationhouse and told § 87(2)(b) that she was not permitted to walk home on § 87(2)(b). § 87(2)(b) replied that she was not familiar with the area and needed to walk on § 87(2)(b) to which Officer Nicoletta responded, "I don't care, if you walk there we'll lock you up and throw you in the cells." § 87(2)(b) did not want to be arrested, so she walked in the opposite direction. § 87(2)(b) went to the 75th Precinct stationhouse and spoke with § 87(2)(b)'s arresting officer, identified as Officer Kirton, who was polite and told § 87(2)(b) that § 87(2)(b) would be taken to Brooklyn Central Booking and then released.

§ 87(2)(b) an acquaintance of § 87(2)(b) who was arrested for § 87(2)(b) on July 15, 2007, provided the following statement on August 15, 2007 in a telephone conversation with Inv. Vredenburg (encl. 12a-b). § 87(2)(g)

§ 87(2)(b) was in the prisoner van driven by Officer Kirton and the van was driving west on § 87(2)(b) as § 87(2)(b) was running east on § 87(2)(b) with four to five officers running after § 87(2)(b) with their guns drawn and pointed at him. Later in the conversation, § 87(2)(b) said that § 87(2)(b) was walking alone on § 87(2)(b) and the officers were running towards him. § 87(2)(b) stopped running in a driveway on § 87(2)(b) four to five houses from the intersection with § 87(2)(b) and four to five officers, including Officer Nicoletta, who § 87(2)(b) described as a bald, short white male, and Officer Chiam, the officer in the passenger seat of the prisoner van who § 87(2)(b) described as a white male, tripped § 87(2)(b)'s feet and pushed him to the ground. § 87(2)(b) said that Officer Chiam did not draw and point his gun at § 87(2)(b). Later in the conversation, § 87(2)(b) said that § 87(2)(b) was still walking on the sidewalk when he was brought to the ground. Still later in the conversation, § 87(2)(b) said that when § 87(2)(b) stopped running in the driveway, he laid down on the

ground. § 87(2)(b) said that at no point was § 87(2)(b) positioned on any sort of wall or fence. One of the officers, though § 87(2)(b) did not see which officer, took § 87(2)(b)'s shoes and socks off. After § 87(2)(b) was brought to the ground, he put his hands at his back and four to five white officers, for whom he could provide no further description of, and Officer Nicoletta used their feet to stomp § 87(2)(b)'s face against the ground. Officer Nicoletta did so once, then stepped back, ran towards § 87(2)(b) and stomped on his face again. § 87(2)(b) said that Officer Nicoletta may have stomped § 87(2)(b)'s head against the ground more than twice. The other four officers positioned near § 87(2)(b) were all kicking § 87(2)(b) but § 87(2)(b) could not further describe the kicks because the officers were positioned near one another, making the movements difficult to distinguish. § 87(2)(b) noted that the officers "almost broke" § 87(2)(b)'s nose in using physical force against him. § 87(2)(b) did not present any sort of physical resistance to the officers. From inside the van, § 87(2)(b) heard an unidentified officer say, "You're an asshole," "You're a monkey," and "Why were you running?" § 87(2)(b) said that he heard Officer Nicoletta curse multiple times, but he could not recall the specific statements.

§ 87(2)(b) was not handcuffed until he was raised off of the ground, at which point he heard Officer Nicoletta state, "Go back to your country" and "The banana boat never should have brought you over here." § 87(2)(b) was at the scene and she attempted to pick § 87(2)(b)'s shoes up from the ground, but one of the officers told her not to touch § 87(2)(b)'s shoes, stating, "Don't fucking touch those shoes, he don't need no shoes." Officer Nicoletta picked up § 87(2)(b)'s shoes, put them next to him, and said, "Here's your fucking shoes, asshole." Officer Nicoletta and another officer, described as a short, balding white male wearing a hat, searched a purse § 87(2)(b) had gave it back to her. § 87(2)(b) did not see the officers remove any items or further search § 87(2)(b). Officer Nicoletta told § 87(2)(b) that she could not walk down § 87(2)(b). § 87(2)(b) questioned why not, and Officer Nicoletta replied, "Shut the fuck up, don't say anything else." § 87(2)(b) said that the prisoner van was positioned at the end of the driveway in which § 87(2)(b) and § 87(2)(b) interacted with the officers and did not leave the driveway at any point before § 87(2)(b) entered the van. The driver of the prisoner van, Officer Kirton, who § 87(2)(b) described as a black male, did not interact with § 87(2)(b) in the driveway. § 87(2)(b) didn't see § 87(2)(b) interact with the officers at the stationhouse. § 87(2)(b) did not have any contact information for the other individuals in the prisoner van. § 87(2)(b) said that he advised § 87(2)(b) to file a complaint regarding the incident while at Brooklyn Central Booking, but had not further discussed the incident with him or spoken with him since.

Civilians Not Interviewed

On July 31, 2007, Inv. Vredenburg sent please call letters to § 87(2)(b) and § 87(2)(b) the 75th Precinct BADS arrest index for July 15, 2007 (encl.) indicates that all of them were arrested by the 75th Precinct SNEU team on July 15, 2007. On August 2, 2007, § 87(2)(b) left a voicemail message with a phone number. On August 13, 2007, the please call letters sent to § 87(2)(b) and § 87(2)(b) were returned by the United States Postal Service. Inv. Vredenburg sent please call letters to § 87(2)(b) and § 87(2)(b) on August 13, 2007, and called § 87(2)(b) who provided a phone number for § 87(2)(b). Inv. Vredenburg called § 87(2)(b) and § 87(2)(b) on August 14, 2007, and left messages for them to return the calls. On August 15, 2007, Inv. Vredenburg called § 87(2)(b) who said he was busy at the time but to call him at the same number the next day. Inv. Vredenburg called § 87(2)(b) on August 16, 17, 21, and 22, 2007, and left messages for him to return the calls. Inv. Vredenburg sent § 87(2)(b) an additional please call letter on August 21, 2007. § 87(2)(b) called Inv. Vredenburg on August 23, 2007, and left a voicemail to return the call. Inv. Vredenburg returned the call and left a voicemail message for § 87(2)(b). Inv. Vredenburg called § 87(2)(b) and left messages on August 27 and 31, 2007.

Inv. Vredenburg conducted Lexis Nexis, www.zabasearch.com, and www.whitepages.com searches for § 87(2)(b) on December 4, 2007 that confirmed the address provided and did not provide any telephone numbers. Inv. Vredenburg also conducted Lexis Nexis, www.zabasearch.com, and www.whitepages.com searches for § 87(2)(b) that provided an additional address and a telephone number. Inv. Vredenburg called the telephone number, but the number was disconnected. Inv. Vredenburg sent a please call letter to the additional address and the letter was returned by the United States Postal Service on December 12, 2007.

Officers Interviewed

Officer Vito Nicoletta was interviewed at the CCRB on August 13, 2007 (encl. 14a-d). Officer Nicoletta is a § 87(2)(b) year old 5'6", 165 pound white male who is bald and has brown eyes. On July 15, 2007, Officer Nicoletta worked from 4:00 PM to 1:35 AM, with only Officer Lavelle in unmarked vehicle #§ 87(2)(b) a dark blue Crown Victoria, as the apprehension/chase team for the 75th Precinct SNEU team. He could not recall any of the other officers working on the SNEU on July 15, 2007. Officer Nicoletta did not have any memo book entries regarding the incident (encl. 13a-b).

Officer Nicoletta completed a supporting deposition (encl. 13c-d) regarding the arrest of § 87(2)(b) that indicates he recovered two ziplock bags of marijuana from the inside of § 87(2)(b)'s left sock. The supporting deposition form has a space to indicate that ziplock bags containing narcotics were recovered from the ground where he observed the defendant either drop or throw it and Officer Nicoletta did not mark this space. Officer Nicoletta indicated that § 87(2)(b) resisted arrest by flailing his arms and "refusing to be handcuffed." The form has a space to describe another manner of resisting arrest as well as struggled with the officers, but Officer Nicoletta did not mark this space. Officer Nicoletta indicated that at the 75th Precinct stationhouse at 10:35 PM, Officer Lipinski identified § 87(2)(b) as the person he had observed possessing marijuana.

On July 15, 2007, at about 10:15 PM, the observation post radioed a description, which he could not recall, of one male and no one else. The individual was said to be walking on § 87(2)(b) from § 87(2)(b) but no crime was specified. Officer Nicoletta had been working for the 75th Precinct SNEU team for one year at the time of the incident, and explained that individuals coming from § 87(2)(b) generally have marijuana and crack cocaine. Officer Nicoletta and Officer Lavelle stopped their vehicle near § 87(2)(b) who was walking with § 87(2)(b) close to the intersection of § 87(2)(b) and § 87(2)(b). § 87(2)(b) was not physically interacting with § 87(2)(b) and Officer Nicoletta had the observation post repeat the description in order to assure § 87(2)(b) was the correct individual. Officer Nicoletta considered § 87(2)(b) to be under arrest in approaching him based on the observation post's description. Officer Nicoletta and Officer Lavelle approached § 87(2)(b) and Officer Nicoletta said, "How are you doing sir, can I speak to you for a second?" § 87(2)(b) stopped walking and said, "Sure thing." Officer Lavelle walked behind § 87(2)(b) and Officer Nicoletta reached towards § 87(2)(b)'s waistband in order to assure he did not have a weapon on his waistband, though he admittedly did not see a bulge on § 87(2)(b)'s waistband. As Officer Nicoletta was about to touch § 87(2)(b)'s waistband, § 87(2)(b) stated that he had marijuana in his sock. Officer Nicoletta had not mentioned drugs to § 87(2)(b) before he made this statement. § 87(2)(b) calmly put his hands behind his back and Officer Lavelle grabbed § 87(2)(b)'s hands in order to handcuff him when § 87(2)(b) put his hands on Officer Nicoletta's head, pushed down, and attempted to run from the officers. Officer Nicoletta said that part of § 87(2)(b)'s body was on his back as § 87(2)(b) pushed down on him, but he was not sure what part. Officer Nicoletta turned and grabbed the back of § 87(2)(b)'s shirt as he attempted to run and they "kind of did a round-about, round-about." Officer Nicoletta specified that as he was grabbing onto the back of § 87(2)(b)'s shirt, § 87(2)(b) continued to attempt to run away and hit his arms against Officer Nicoletta's, though he was unsure of how many times, as they "ran in circles." § 87(2)(b) broke free from Officer Nicoletta's grip and ran two blocks on § 87(2)(b) to § 87(2)(b). Officer Nicoletta pursued § 87(2)(b) on foot and Officer Lavelle drove the unmarked police vehicle in pursuit of § 87(2)(b). Officer Nicoletta put over the SNEU radio but not the precinct radio that § 87(2)(b) was fleeing. Officer Nicoletta did not search § 87(2)(b) or retrieve the marijuana from § 87(2)(b) before he ran. Before § 87(2)(b) ran, neither Officer Nicoletta nor Officer Lavelle spoke with § 87(2)(b). No other officers were at the location.

The SNEU prisoner van and patrol officers responded, though Officer Nicoletta could not recall if more than ten or twenty patrol officers were present. Officer Nicoletta also could not recall when exactly the prisoner van arrived on scene, such as if it caught up with § 87(2)(b) before he did. When Officer Nicoletta caught up with § 87(2)(b) he was "kind of in an alley" in front of a building on § 87(2)(b) a few houses away from the corner of § 87(2)(b). None of the officers, including Officer Nicoletta, had their guns drawn. At first, Officer Nicoletta said that § 87(2)(b) was "climbing a fence" that made a corner with the building and that "other officers were trying to pull" § 87(2)(b) down from the fence. Later in the interview, Officer Nicoletta said that he was not sure if § 87(2)(b) was on a fence or a wall or how tall the structure was, and he was also not sure if § 87(2)(b) was climbing up the wall or on the ground or if

other officers assisted Officer Nicoletta in attempting to bring § 87(2)(b) to the ground. Officer Nicoletta said that he grabbed onto § 87(2)(b)'s arms and shirt and pulled on them, though he could not specify if § 87(2)(b) was on the fence or wall, or was near it as Officer Nicoletta grabbed him. § 87(2)(b) resisted by attempting to run away, but Officer Nicoletta pulled his arms and shirt to take § 87(2)(b) to the ground. Officer Nicoletta did not use any other physical force against § 87(2)(b). He was not sure what part of § 87(2)(b)'s body touched the ground first. Once § 87(2)(b) was on the ground, he attempted to raise himself off the ground, but Officer Nicoletta maintained a grip on § 87(2)(b)'s arms and pressed on his back and shoulder area to keep him from doing so. Officer Nicoletta alone handcuffed § 87(2)(b) using his own handcuffs. Officer Nicoletta was not sure for how long he struggled with § 87(2)(b). During the struggle, Officer Nicoletta told § 87(2)(b) numerous times, "Stop resisting, give me your hands," but § 87(2)(b) did not comply with these orders. Officer Nicoletta did not, nor did he see any other officer, kick or push § 87(2)(b)'s head against the ground.

After § 87(2)(b) was handcuffed, Officer Nicoletta noticed that § 87(2)(b)'s cell phone was on the ground and he suggested that § 87(2)(b) dropped the cell phone during the struggle and thought that § 87(2)(b) may have attempted to discard more drugs. Officer Nicoletta ordered the other officers to conduct an evidence search in the immediate area at which point § 87(2)(b) walked into the vicinity and picked up § 87(2)(b)'s cell phone. Officer Nicoletta ordered § 87(2)(b) to leave the area a few times and told her that she could be arrested if she did not. § 87(2)(b) stood to the side with a small crowd of people who did not interfere, and gave § 87(2)(b)'s cell phone to Officer Nicoletta.

Officer Nicoletta was not aware of any other officers interacting with § 87(2)(b) and did not know if Officer Lavelle searched § 87(2)(b). He did not obtain § 87(2)(b)'s identification or see any other officer do so. Officer Nicoletta took off § 87(2)(b)'s shoes and socks and obtained marijuana from one of § 87(2)(b)'s socks, though he did not recall which sock. He could not recall if he returned § 87(2)(b)'s socks and shoes to him before § 87(2)(b) walked to the prisoner van and could not recall when they were returned to § 87(2)(b). § 87(2)(b) walked voluntarily with Officer Nicoletta to the prisoner van, where § 87(2)(b) completed a form permitting § 87(2)(b) to take his cell phone. Officer Nicoletta then walked the route § 87(2)(b) had run from § 87(2)(b) for additional evidence and to obtain his own cell phone, which he had dropped.

At the 75th Precinct stationhouse, § 87(2)(b) was cooperative in providing identification information, though Officer Nicoletta could not recall if he viewed § 87(2)(b)'s identification information. Officer Nicoletta noticed that § 87(2)(b) had an abrasion, which he had not noticed before, near one of his eyes. He conjectured that § 87(2)(b) sustained the abrasion during the struggle, though he was not sure at what point during the struggle and could not think of a specific point at which he would have sustained the injury. Officer Nicoletta did not discuss the injury with § 87(2)(b) and said that he thought § 87(2)(b) received medical attention, but did not call for EMTs to come to the 75th Precinct stationhouse.

Officer Nicoletta could not recall if he had § 87(2)(b)'s license at any point or if § 87(2)(b) showed him a Trinidad and Tobago license and did not see § 87(2)(b)'s driver's license or make a motion to throw it. Officer Nicoletta denied stating or hearing any of the suggested discourteous phrases. He did not tell § 87(2)(b) not to walk on § 87(2)(b) following the apprehension of § 87(2)(b). Also, Officer Nicoletta could not recall if § 87(2)(b) was strip searched.

Officer Nicoletta had "no idea" why § 87(2)(b) was not charged with resisting arrest, which he thought was appropriate, and said that he spoke with Officer Kirton about the arrest. Officer Nicoletta had not interacted with § 87(2)(b) or § 87(2)(b) before.

Officer Jennifer Lavelle of the 75th Precinct was interviewed at the CCRB on August 30, 2007 (encl. 23a-c). Officer Lavelle is a 6'0", 150-pound white female with brown hair and brown eyes who is § 87(2)(b) years old. On July 15, 2007, Officer Lavelle worked from 4:00 PM to 12:35 AM with Officer Nicoletta and Sergeant Colavito in unmarked vehicle #§ 87(2)(b) as the apprehension/chase team for the 75th Precinct SNEU team. Officer Lavelle did not have any memo book entries concerning the incident (encl. 22a-b). § 87(2)(g)

Officer Lavelle said that the description put over by the observation post described a male black committing a hand-to-hand transaction and it did not describe any other individuals. At the time the description was provided, Officer Lavelle, Sergeant Colavito, and Officer Nicoletta were on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) and it took them about ten seconds to reach § 87(2)(b) and § 87(2)(b) who were standing near the corner of § 87(2)(b) and § 87(2)(b). Officer

Lavelle did not see § 87(2)(b) exchange anything with § 87(2)(b). Officer Nicoletta asked § 87(2)(b) where he was coming from and if he had any illegal items on his person. § 87(2)(b) answered that he was coming from somewhere on § 87(2)(b) and did not have any illegal items on his person. Officer Lavelle asked § 87(2)(b) if she was with § 87(2)(b) and she answered that he is her boyfriend. Officer Lavelle asked § 87(2)(b) for identification, but she said that she did not have any identification. Officer Lavelle asked § 87(2)(b) to step to the side and she did so. Officer Lavelle did not ask § 87(2)(b) about having narcotics and did not search or frisk her, and could not recall if § 87(2)(b) had a purse or handbag with her. Officer Lavelle described § 87(2)(b) as “cooperative” during the stop. § 87(2)(b) was positioned behind § 87(2)(b) with Officer Lavelle between them. Sergeant Colavito exited the unmarked vehicle and was speaking with a patrol officer, whom Officer Lavelle did not know and could not describe, near the unmarked vehicle.

After answering Officer Nicoletta’s questions, § 87(2)(b) either dropped the marijuana to the ground or it fell, as Officer Nicoletta stated a word used to indicate an arrest to Officer Lavelle. Officer Lavelle said that she saw Officer Nicoletta pick something up from the ground, which later turned out to be two small bags of marijuana, and his hands touched the ground in doing so less than a foot from § 87(2)(b). Officer Lavelle did not recall Officer Nicoletta taking § 87(2)(b)’s shoes off at the scene. As Officer Nicoletta picked the bags off the ground, § 87(2)(b) ran from the officers north on § 87(2)(b). Officer Lavelle said that she did not recall seeing Officer Nicoletta and § 87(2)(b) having any physical contact whatsoever as § 87(2)(b) ran from the officers. No other officers were able to make any contact with § 87(2)(b). Officer Nicoletta ran after § 87(2)(b) and Sergeant Colavito and Officer Lavelle pursued § 87(2)(b) in the police vehicle.

Approximately one minute later, Officer Lavelle caught up with § 87(2)(b) on § 87(2)(b). When she arrived, § 87(2)(b) was handcuffed in a driveway, Officer Kirton was in the prisoner van at the end of the driveway, and Officer Nicoletta was in the driveway. Aside from the prisoner van and the chase car, no other police units responded. Directly after Officer Lavelle arrived, Officer Nicoletta walked § 87(2)(b) to the prisoner van and he was placed inside. She did not see any officer use physical force against § 87(2)(b). Officer Lavelle gave § 87(2)(b)’s property, which consisted of a cell phone and possibly another item. Officer Lavelle did not suspect § 87(2)(b) of having any drugs. She was not aware whether any other officer suspected § 87(2)(b) of possessing drugs. She did not search § 87(2)(b) at this point and was not aware of any officer, including Officer Nicoletta, obtaining § 87(2)(b)’s license. Officer Lavelle did not hear any verbal interaction between Officer Nicoletta and § 87(2)(b) or § 87(2)(b).

At the 75th Precinct stationhouse, Officer Lavelle saw that § 87(2)(b) had a cut above his right eye that she had not seen when she first saw him. Officer Lavelle did not know how he obtained the injury and didn’t discuss it with any of the officers. She denied hearing or stating any of the suggested discourteous phrases.

Officer Lavelle and Officer Nicoletta did not go back to § 87(2)(b) after § 87(2)(b) was apprehended to conduct an evidence search.

Officer John Chiam of the 75th Precinct was interviewed at the CCRB on August 28, 2007 (encl. 19a-c). Officer Chiam is a 5’11”, 175 pound Asian male who has black hair and brown eyes and is § 87(2)(b) years old. On July 15, 2007, Officer Chiam worked from 4:00 PM to 12:35 AM and was assigned to the 75th Precinct SNEU team prisoner van with Officer Kirton using marked police van #5668. Officer Chiam did not have any memo book entries regarding § 87(2)(b) (encl. 18a) or complete any paperwork concerning the arrest. § 87(2)(g)

Officer Chiam said that he and Officer Kirton were positioned near the intersection of § 87(2)(b) and § 87(2)(b) and there were a few prisoners in the prisoner van when Officer Nicoletta put over the SNEU radio in a distressed and urgent manner that a prisoner, § 87(2)(b) was running on § 87(2)(b). Officer Kirton drove on § 87(2)(b) to § 87(2)(b) at which point Officer Chiam saw § 87(2)(b) running towards the driver’s side of the prisoner van on § 87(2)(b). § 87(2)(b) was alone and Officer Chiam could not see anyone else running behind him, and he could not see whether § 87(2)(b) had any objects in his hands. When § 87(2)(b) saw the prisoner van, he turned right onto § 87(2)(b). At this point, which was less than a minute after Officer Nicoletta had put over the distressed radio transmission, Officer Chiam exited the prisoner van and saw § 87(2)(b) run into what looked to Officer Chiam like a large courtyard in front of a building. There were no lights illuminating the courtyard. Officer Chiam alone pursued § 87(2)(b) into the courtyard and said, “Police, don’t move.” § 87(2)(b) stopped in the middle of the driveway and turned towards Officer Chiam, who was about fifteen feet from § 87(2)(b).

at the beginning of the driveway and drew his gun and pointed it at § 87(2)(b) as he still could not see whether or not § 87(2)(b) had any weapons. Officer Chiam ordered § 87(2)(b) to put his hands up and get on the ground. § 87(2)(b) did not immediately put his hands up, but he slowly went to the ground unassisted and lay on his stomach facing Officer Chiam.

After § 87(2)(b) went to the ground, Officer Nicoletta and an unidentified uniformed officer, who Officer Chiam did not know and appeared to be a young Hispanic or white male from the Field Training Unit, arrived at the scene, Officer Chiam lowered his gun. A few seconds after Officer Nicoletta and the unidentified uniformed officer arrived, § 87(2)(b) was handcuffed by one of them without any difficulty or struggle. The prisoner van was positioned at the beginning of the driveway and Officer Chiam did not want to leave Officer Kirton alone with the prisoners, so he walked to the prisoner van. § 87(2)(b) was not brought to the prisoner van for at least “a few minutes” after he had been handcuffed and Officer Chiam did not know what the officers were doing with § 87(2)(b) stating that he did not see any physical force used against § 87(2)(b) and did not recall any officer, including himself, kicking § 87(2)(b). Within a few minutes of the radio transmission, Officer Lavelle and Sergeant Colavito arrived at the scene. It was not difficult for the officers to bring § 87(2)(b) to the prisoner van where his property was taken and vouchered by Officer Chiam, which included two ziplock bags of marijuana and a cell phone. Officer Chiam did not speak with § 87(2)(b) at this point and said that he saw § 87(2)(b) speaking with Sergeant Colavito, but he could not hear what was being said. Officer Chiam said that he was positioned on the opposite side of the prisoner van from § 87(2)(b) and did not see or hear if she interacted with Officer Nicoletta or Officer Lavelle.

Medical attention was not requested for § 87(2)(b) at the 75th Precinct stationhouse and Officer Chiam was not aware of whether or not § 87(2)(b) was strip searched, stating that the officers doing the strip searches change each night. Officer Chiam stated that generally all of the prisoners are strip searched and Sergeant Colavito authorizes the strip searches. He did not hear any verbal interaction between § 87(2)(b) and Officer Nicoletta at the stationhouse and denied hearing any of the suggested discourteous phrases. Officer Chiam noted that the SNEU team had discussed the incident prior to him being interviewed because Officer Nicoletta informed the officers that an investigation was ongoing and he had been interviewed regarding the incident.

Officer Tyrone Kirton of the 75th Precinct was interviewed at the CCRB on August 29, 2007 (encl. 21a-c). Officer Kirton is a 5’9”, 275 pound black male who has black hair and brown eyes and who is § 87(2)(b) years old. On July 15, 2007, Officer Kirton worked from 4:00 PM to 9:35 AM as the operator of the 75th Precinct SNEU team prisoner van with Officer Chiam. They used marked police van #5668. In his memo book (encl.), Officer Kirton noted that he was § 87(2)(b)s arresting officer at 10:40 PM.

Officer Kirton completed the Misdemeanor Narcotics Possession Fact Sheet (encl. 20a-n), On-Line Booking System Arrest Worksheet, Arrest Reports, Property Clerk’s Invoice, and Field Test Report regarding the incident, which indicates that § 87(2)(b) was apprehended at the southwest corner of § 87(2)(b) and § 87(2)(b) at 10:20 PM and that 2 ziplock bags of marijuana, amounting to less than 1/8 of an ounce of marijuana, were recovered from him by Officer Nicoletta from inside of § 87(2)(b)s left sock. A field test confirmed that one of the ziplock bags contained marijuana and both of the bags were vouchered. Additionally, a cell phone was vouchered. The fact sheet indicates that § 87(2)(b) was observed buying the marijuana with cash by Officer Lipinski at the northwest corner of § 87(2)(b) and § 87(2)(b) a drug prone location, and that the seller was unapprehended. § 87(2)(b) was charged with § 87(2)(b) and no other charges. The arrest reports indicate that physical force was not used against § 87(2)(b) who was in apparently normal condition and had not had any prior arrests or open warrants. § 87(2)(g)

Officer Kirton did not see how Officer Chiam brought § 87(2)(b) to a stop or if he drew his weapon, as he did not exit the prisoner van, which was not facing Officer Chiam and § 87(2)(b) at that time. Officer Kirton said that a minute or two after Officer Chiam exited the prisoner van, Officer Nicoletta and an unidentified uniformed officer turned the corner of § 87(2)(b) and § 87(2)(b). After Officer Chiam exited the prisoner van, Officer Kirton made a U-turn at the corner of § 87(2)(b) and § 87(2)(b) turning on the van lights due to traffic as he did so, and parked the prisoner van at beginning of the driveway in which § 87(2)(b) was positioned. Officer Lavelle and Sergeant Colavito arrived at about the same time that Officer Kirton parked the prisoner van. § 87(2)(b) was handcuffed and standing with Officer Nicoletta, Officer Chiam, and the unidentified uniformed officer, who was a male

white or Hispanic and from the 75th Precinct. Officer Kirton heard the officers question § 87(2)(b) as to why he ran, but he could not hear all of what was said. Officer Kirton remained in the prisoner van with three other prisoners as § 87(2)(b) was brought to the prisoner van by Officer Nicoletta and Officer Chiam. Officer Kirton did not hear what Officer Nicoletta said to § 87(2)(b) as he was standing with § 87(2)(b) next to the prisoner van, where § 87(2)(b)'s identification was taken and property was vouchered. Officer Nicoletta then walked away from the prisoner van. After § 87(2)(b) was put into the prisoner van, Officer Kirton said that he saw § 87(2)(b) in the driveway standing about ten feet from the prisoner van and an officer, though he could not recall who, questioned § 87(2)(b) as to her relation with § 87(2)(b). § 87(2)(b) provided her identification to a male officer, though Officer Kirton was not sure which officer. Officer Kirton denied that he saw any officer search § 87(2)(b) or Officer Nicoletta motioning to throw § 87(2)(b)'s license. He denied hearing any of the suggested discourteous statements. Officer Kirton also denied seeing any officer use physical force against § 87(2)(b). Officer Kirton searched the prisoner van at the 75th Precinct and did not see Officer Nicoletta or any other officer interact with § 87(2)(b) at the stationhouse. After searching the prisoner van, Officer Kirton saw § 87(2)(b) in the holding cells, where he asked § 87(2)(b) if he wanted any water, cigarettes, or anything else.

Officer Kirton said that Officer Nicoletta did not speak with him about the arrest or inform him that § 87(2)(b) had flailed his arms, hit Officer Nicoletta's arms in running away, climbed a fence, or struggled with him or otherwise resisted arrest, and no other officer made such statements.

Sergeant Domenico Colavito was interviewed at the CCRB on September 25, 2007 (encl. 25a-d). Sergeant Colavito is a 6'0", 205 pound white male with gray/brown hair and brown eyes who is § 87(2)(b) years old. On July 15, 2007, Sergeant Colavito worked from 4:00 PM to 12:57 AM and performed overtime as well, but did not indicate this in his memo book. He worked as the supervisor of the 75th Precinct SNEU team and was in the same unmarked vehicle as Officer Nicoletta and Officer Lavelle, vehicle #221. Sergeant Colavito did not have any memo book entries concerning the incident (encl. 24a-b).

§ 87(2)(g)

Sergeant Colavito signed a form explaining why § 87(2)(b) was not released with a Desk Appearance Ticket (encl. 24c), which indicates that he was unable to verify § 87(2)(b)'s address with proper identification.

Sergeant Colavito said that he did not consider § 87(2)(b) to be under arrest in approaching him, as an "investigation" needed to be conducted in order to confirm that he was the individual described by the observation post. After exiting the police vehicle at the corner of § 87(2)(b) and § 87(2)(b), Sergeant Colavito spoke with an unidentified Field Training Unit officer who was standing near the corner a "few steps" away from § 87(2)(b) and Officer Nicoletta. He said that he did not hear what was said between Officer Nicoletta and § 87(2)(b). Sergeant Colavito said that he did not suspect § 87(2)(b) of having narcotics on her, as the observation post would have indicated as much and he presumed that the observation post watched § 87(2)(b) and § 87(2)(b) up until the point at which they were stopped. He said that § 87(2)(b) was not cooperative with the officers, as she was complaining and "flapping her gums" during the stop, though he could not provide any of the specific statements she made. Sergeant Colavito did not know how Officer Nicoletta came to the determination that § 87(2)(b) was in possession of narcotics, stating that the marijuana fell to the ground at § 87(2)(b)'s feet and he was not sure if § 87(2)(b) dropped the narcotics or if Officer Nicoletta searched § 87(2)(b) in order to obtain the narcotics. § 87(2)(b) ran from the officers as Officer Nicoletta picked the marijuana up from the ground and he did not see any physical contact between § 87(2)(b) and any officers as he did so. Officer Nicoletta began running after § 87(2)(b) but he was "pretty far" from him and "wasn't even making up ground" as he did so and that the distance between them "grew from twenty feet to thirty feet" right away. Sergeant Colavito was not sure if the Field Training Unit officer ran after § 87(2)(b).

When Sergeant Colavito next saw § 87(2)(b), Officer Nicoletta and Officer Chiam were standing with § 87(2)(b) and walked him to the prisoner van. No additional contraband was recovered from § 87(2)(b) in the driveway. Officer Chiam and Officer Kirton informed Sergeant Colavito that they had cut off § 87(2)(b)'s flight at § 87(2)(b) and § 87(2)(b). None of the officers interacted with § 87(2)(b) in the driveway.

Sergeant Colavito denied seeing Officer Lavelle search § 87(2)(b) at any point and hearing any of the suggested discourteous phrases. Sergeant Colavito described the arrest of § 87(2)(b) as a "very standard SNEU set arrest" and commented, "There was nothing out of the ordinary." Sergeant Colavito denied that

§ 87(2)(b) was strip searched, such as being told to drop his pants, stating that did not note the strip search in any paperwork, which he would have done had § 87(2)(b) been strip searched.

Officer Angelo Baez of the 75th Precinct was interviewed at the CCRB on August 16, 2007 (encl. 16a-b). Officer Baez is a 5'7", 175 pound Hispanic male who has black hair and brown eyes and is § 87(2)(b) years old. On July 15, 2007, Officer Baez worked from 4:00 PM to 12:35 AM with Officer Lewis Ortiz as the observation post for the 75th Precinct SNEU team. They used an unmarked black sedan, but Officer Baez did not know which vehicle. Officer Baez listed Officer Lipinski and Sergeant Colavito as having worked on July 15, 2007. He did not have any entries concerning the incident (encl. 15a-b) § 87(2)(g)

Officer Baez completed a supporting deposition (encl. 15c-d) that indicates Officer Lipinski saw § 87(2)(b) possessing marijuana on a sidewalk at the northwest corner of § 87(2)(b) and § 87(2)(b) in possession of two ziplock bags of marijuana in his right hand.

Officer Baez said that he and Officer Ortiz were parked directly across the street from a bodega on the northwest corner of § 87(2)(b) and § 87(2)(b) when he saw § 87(2)(b) approach a seller about ten feet from the bodega. § 87(2)(b) gave the seller cash and the drug dealer gave § 87(2)(b) a ziplock bag of marijuana, which § 87(2)(b) had in his hand. After the transaction, the seller walked north on § 87(2)(b) § 87(2)(b) was standing nearby, but was not involved in the transaction and he did not suspect her of having marijuana. He was not sure if Officer Ortiz saw the transaction. Officer Baez put over a description of § 87(2)(b)'s height, weight, sex, race, clothing, and direction of flight, but did not describe the seller or § 87(2)(b). Officer Baez indicated that § 87(2)(b) was a "positive." Officer Baez did not see the officers stop § 87(2)(b) and § 87(2)(b). Officer Baez and Officer Ortiz responded to Officer Nicoletta's radio transmission of a foot pursuit, but he did not see or hear any interaction between § 87(2)(b) and § 87(2)(b) at the scene.

Officer Baez said that following the arrest of § 87(2)(b) he and Officer Ortiz returned to the corner to apprehend the seller, but the seller had left. Officer Baez said that the seller lives on § 87(2)(b) near § 87(2)(b) and had been arrested before, but he did not recall his name or the exact address. Officer Baez was not aware of where the marijuana was found on § 87(2)(b).

Officer Baez has worked as an observation post on the 75th Precinct SNEU team for three years.

Officer Mack Lipinski of the 75th Precinct was interviewed at the CCRB on August 23, 2007 (encl. 17a-b). Officer Lipinski is a 5'9", 185 pound white male with brown hair and brown eyes who is § 87(2)(b) years old. On July 15, 2007, Officer Lipinski worked from 4:00 PM to 12:30 AM with Officer Baez as the observation post for the 75th Precinct SNEU team. They were using an unmarked vehicle, but he did not know what vehicle. Officer Lipinski did not bring his memo book to the interview § 87(2)(g)

Officer Lipinski was driving the vehicle and Officer Baez was positioned in the back seat with binoculars and a radio. Officer Lipinski was parked in the middle of § 87(2)(b) between § 87(2)(b) and § 87(2)(b). Officer Lipinski was not sure if there was a particular address of concern, stating that only Officer Baez was watching the transactions and he was concentrating on assuring that no one noticed the officers' presence. Officer Lipinski did not see the transaction involving § 87(2)(b) but heard Officer Baez put over a description only of § 87(2)(b) he said the seller "took off" and the officers did not apprehend him without any officers being sent to arrest him. He did not see the officers stop § 87(2)(b) and § 87(2)(b).

Officer Lipinski said that after hearing Officer Nicoletta report a foot pursuit of § 87(2)(b) he slowly put the vehicle in drive and exited the parking spot, as he did not want people standing on the street to notice the officers. He estimated it took him a couple of minutes to reach § 87(2)(b) and § 87(2)(b) where Officer Baez exited the vehicle and identified § 87(2)(b) as the correct individual. They were at the scene for approximately one minute and left the scene quickly so that people did not associate the unmarked vehicle with the police presence. He did not hear or see any interaction between § 87(2)(b) and § 87(2)(b) and the officers.

At the 75th Precinct stationhouse, Officer Lipinski learned that § 87(2)(b) was arrested for § 87(2)(b). He was not sure if he saw § 87(2)(b) at the stationhouse or if § 87(2)(b) was strip searched.

Communications Documents

A request for any SPRINT reports regarding the incident was returned as negative (encl. 36a-r).

Medical Documents

The NYC Department of Corrections Pre-Arrest Screening Form concerning § 87(2)(b) (encl. 26a-b), dated July 16, 2007, indicates that he did not complain of any medical condition and was in apparently normal condition.

The § 87(2)(b) medical records (encl. 27a-l) indicate that on § 87(2)(b), § 87(2)(b) complained to doctors of being beaten up by police officers during the night of July 15, 2007, and feeling pain in his face. The doctors noted and diagnosed § 87(2)(b) with having bruises and an abrasion on the upper right side of his face near his right eye and on his nose. § 87(2)(b) suggested to the doctors that he sustained the abrasion and bruises in having face pushed against the ground. An X-ray of § 87(2)(b)'s face indicated his nasal bones were "fractured without significant displacement of the fracture fragments."

Police Documents

The 75th Precinct Command Log (encl. 28a) indicates that § 87(2)(b) was at the front desk at 10:35 PM and was arrested for § 87(2)(b) and does not indicate that he was strip searched. The Command Log noted that § 87(2)(b) was in apparently normal physical and mental condition. He was brought to Brooklyn Central Booking at 3:42 AM.

The 75th Precinct Prisoner Holding Pen Roster indicates that § 87(2)(b) was lodged in the holding cells at 10:45 PM and left at 4:30 AM for Brooklyn Central Booking with Officer Kirton (encl. 29a-d).

The 75th Precinct Roll Call for Tour 3 of July 15, 2007 (encl. 30a-i) indicates that Sergeant Colavito was the supervisor of the SNEU team, Officer Lavelle and Officer Nicoletta were in unmarked police vehicle #221, Officer Chiam and Officer Kirton were in marked police van #5668, and Officer Baez and Officer Lipinski were in unmarked rental auto #§ 87(2)(b). Officer Lewis Ortiz is listed as having been on vacation. Twenty two officers are listed as having been assigned to Precinct Training Unit Posts. Inv. Vredenburg spoke with Sergeant Perez, the Integrity Control Officer, on October 3, 2007, and in observing the roll call he was unable to identify any white or Hispanic male officers positioned at a foot post near the location.

The 75th Precinct Stop and Frisk Log for July 15, 2007 (encl. 31a-b) does not indicate that a stop and frisk report was completed regarding § 87(2)(b). A request for a handwritten stop and frisk report was returned with it indicated that none were found regarding the arrest of § 87(2)(b). Sergeant Perez of the 75th Precinct informed Inv. Vredenburg on October 23, 2007, that the 75th Precinct does not keep a handwritten stop and frisk log due to the large volume of stop and frisk reports prepared in the precinct.

A request for a Medical Treatment of Prisoner form (encl. 36a-r) regarding § 87(2)(b) was returned with it indicated that none were on file at the 75th Precinct and at the Brooklyn Court Section.

The 75th Precinct BADS arrest index for July 15, 2007 (encl. 33a-j) does not indicate that any other arrests were made at the scene.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant CCRB History

Neither § 87(2)(b) nor § 87(2)(b) has filed any other complaints with the CCRB (encl. 3a-b).

Subject Officer CCRB History

Officer Baez has been with the NYPD for seventeen years and has been the subject of two substantiated CCRB allegations in case #9302957 regarding physical force and using a radio as a club for which no NYPD dispositions were available in CTS. Officer Nicoletta and Officer Lavelle have been with the NYPD for three years and neither of them has been the subject of any substantiated CCRB allegations (encl. 2a-h). Officer Chiam has been with the NYPD for nine years and has not been the subject of any substantiated CCRB allegations. Officer Lipinski has been with the NYPD for four years and has not been the subject of any substantiated CCRB allegations. Sergeant Colavito has been with the NYPD for twenty three years and has not been the subject of any substantiated CCRB allegations.

Notice of Claim

On January 7, 2008, Ms. Jeannine Quijije of the NYC Office of the Comptroller confirmed that neither § 87(2)(b) nor § 87(2)(b) has filed a notice of claim regarding the incident.

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) and § 87(2)(b) alleged that they were stopped and questioned about having contraband. Officer Baez said that he put over the SNEU radio a description of § 87(2)(b) in order to have the chase vehicle stop him in regards to possessing narcotics. § 87(2)(g)

§ 87(2)(b) alleged that an officer frisked him and searched his pants pockets and took off his shoes at the corner of § 87(2)(b) and § 87(2)(b) and he identified Officer Nicoletta in a photo array as the officer who did so. Officer Nicoletta acknowledged that he interacted with § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b) and his physical attributes are consistent with § 87(2)(b)'s description of him. § 87(2)(g)

§ 87(2)(b) alleged that an officer frisked her and then searched her purse at the corner of § 87(2)(b) and § 87(2)(b). Officer Lavelle, who was the only female officer on scene, acknowledged that she interacted with § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b). § 87(2)(b) described the officer as a 5'7", 150-pound white female with brown hair in a pony tail and about 27 years old. Officer Lavelle is a 6'0", 150-pound white female with brown hair and brown eyes who is § 87(2)(b) years old and thus her physical attributes are consistent with § 87(2)(b)'s description. § 87(2)(g)

§ 87(2)(b) alleged that at the corner of § 87(2)(b) and § 87(2)(b) the same officer who frisked and searched him, identified as Officer Nicoletta, who § 87(2)(b) identified in a photo array, said, "What's this shit? This is not a valid ID. You got to go to jail." Officer Nicoletta acknowledged that he interacted with § 87(2)(b) at the location. Also, § 87(2)(b) alleged that Officer Nicoletta termed him a "dickhead" near the corner of § 87(2)(b) and § 87(2)(b) and further commented, "You think you're fucking smart. Later I'm going to take off those handcuffs and beat your ass." § 87(2)(b) alleged that Officer Nicoletta cursed in ordering him to enter the prisoner van without any shoes. While he was at the 75th Precinct stationhouse, § 87(2)(b) alleged that Officer Nicoletta said, "Your face looks like shit. It's not that it looks like shit now, it's like it's extra shit now because you were already born looking like shit." Officer Nicoletta acknowledged that he interacted with § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b) near the corner of § 87(2)(b) and § 87(2)(b) and at the 75th Precinct stationhouse. § 87(2)(g)

§ 87(2)(b) alleged that a 5'9", 170-pound Asian male officer in his thirties pointed his gun at him at the corner of § 87(2)(b) and § 87(2)(b). Officer Chiam, the only Asian male officer working on the 75th Precinct SNEU team on July 15, 2007, acknowledged that he pointed his gun at § 87(2)(b). § 87(2)(g)

§ 87(2)(b) alleged that Officer Nicoletta pushed his head against the ground once and stomped on his head twice. Officer Nicoletta acknowledged that he physically interacted with § 87(2)(b) at the location. § 87(2)(g)

§ 87(2)(b) alleged that Officer Chiam kicked him once in his right side. Officer Chiam acknowledged that he was at the scene at that point. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) alleged that the officer, identified as Officer Nicoletta, termed him a “nigger” near the corner of § 87(2)(b) and § 87(2)(b). Officer Nicoletta acknowledged interacting with § 87(2)(b) at the location. § 87(2)(g).

§ 87(2)(b) alleged that near the corner of § 87(2)(b) and § 87(2)(b) an officer identified as Officer Nicoletta made a motion to throw her Trinidad and Tobago driver’s license and then said to her, “Well, I don’t want to see this. Go back to your country, go back to where you came from. We don’t want you here. If you want to buy drugs, go back to your home and buy drugs.” § 87(2)(b) provided a similar statement. § 87(2)(b) described Officer Nicoletta as a 5’5”, bald white male dressed in his early thirties, which is consistent with his physical features. Officer Nicoletta acknowledged interacting with § 87(2)(b) at the location. § 87(2)(g).

§ 87(2)(b) said that the officer, identified as Officer Nicoletta, told her not to walk on § 87(2)(b) and in doing so stated, “I don’t care, if you walk there we’ll lock you up and throw you in the cells.” Officer Nicoletta acknowledged that he spoke with § 87(2)(b) at the location. § 87(2)(g).

§ 87(2)(b) alleged that he was strip searched at the 75th Precinct stationhouse by Officer Lipinski, who he identified in the photo array. Officer Lipinski said that he was not aware of whether or not § 87(2)(b) was strip searched. § 87(2)(g).

§ 87(2)(g), § 87(4-b)

Assessment of Evidence

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g)

Regarding whether Officer Chiam pointed his gun at § 87(2)(b) Officer Chiam acknowledged pointing his gun at § 87(2)(b) stating that he did so as a protective measure because it was dark at the location and he could not see whether § 87(2)(b) who was running from officers, was holding any weapons.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

Allegation A: Near the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Angelo Baez determined to stop and question § 87(2)(b)

§ 87(2)(b) said that he obtained marijuana inside a residence on § 87(2)(b) between § 87(2)(b) and § 87(2)(b). Officer Baez, the observation post for this SNEU team, put over a radio transmission indicating to Officer Nicoletta, Sergeant Colavito, and Officer Lavelle to stop § 87(2)(b) pursuant to Officer Baez's report of a "positive." Officer Baez said to the CCRB that he had seen § 87(2)(b) purchase marijuana at a bodega at the corner of § 87(2)(b) and § 87(2)(b). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation B: At the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Vito Nicoletta frisked § 87(2)(b)

§ 87(2)(g)

New York State Penal Law code 140.50 states that when an officer has reasonable suspicion that a person has committed or is committing a felony or misdemeanor and the officer reasonably fears for his/her safety, the officer may stop such person and conduct a frisk for a possible weapon. NYPD Patrol Guide Procedure 212-11 (encl. 1a-x), which concerns stop and frisk circumstances, states that officers fearing for safety may run their hands over the exterior of an individual's clothing. § 87(2)(g)

Allegation C: At the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Vito Nicoletta searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b). NYPD Patrol Guide Procedure 212-11 and the Street Encounters: Legal Issues Guide state that officers may conduct a search of an individual when they have probable cause to believe that the individual committed a crime. § 87(2)(g)

Allegation D: At the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Jennifer Lavelle frisked § 87(2)(b)

Allegation E: At the corner of § 87(2)(b) and § 87(2)(b) and near the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Jennifer Lavelle searched § 87(2)(b)

§ 87(2)(b) alleged that Officer Lavelle frisked and searched her. § 87(2)(g)

Allegation F: Near the corners of § 87(2)(b) and § 87(2)(b) and § 87(2)(b) and § 87(2)(b) and at the 75th Precinct stationhouse, Officer Vito Nicoletta spoke obscenely and/or rudely to § 87(2)(b)

Allegation J: Near the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Vito Nicoletta made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) alleged that Officer Nicoletta made numerous discourteous statements to him in addition to terming him a “nigger.” Officer Nicoletta denied making any discourteous statements during the incident. § 87(2)(g)

Allegation K: Near the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Vito Nicoletta made remarks to § 87(2)(b) based upon ethnicity.

§ 87(2)(b) alleged that Officer Nicoletta made a motion to throw her Trinidad and Tobago driver’s license after stating that it was invalid and told her, “Well, I don’t want to see this. Go back to your country, go back to where you came from. We don’t want you here. If you want to buy drugs, go back to your home and buy drugs.” Officer Nicoletta denied making any discourteous statements or motioning to throw § 87(2)(b)’s driver’s license. § 87(2)(g)

Allegation G: Near the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer John Chiam pointed his gun at § 87(2)(b)

§ 87(2)(b) said that Officer Chiam pointed his gun at him and Officer Chiam acknowledged that he did so, which the investigation credited. Officer Chiam’s account was consistent with that of § 87(2)(b) and he said that he pointed his gun as a protective measure while § 87(2)(b) was running from officers and it was too dark for Officer Chiam to determine whether § 87(2)(b) was in possession of any weapons. In *PD v. Gliner* (encl. 1a-x), it is stated that officers may draw or point their guns as a protective measure in response to a reasonable threat of safety and as a means to obviating the need for further physical force. ■

Allegation H: Near the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Vito Nicoletta used physical force against § 87(2)(b)

Allegation I: Near the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer John Chiam used physical force against § 87(2)(b)

§ 87(2)(b) stated that Officer Nicoletta pushed his head against the ground once and stomped on his head twice, thus causing a laceration to the right side of his face. He also alleged that Officer Chiam kicked him in the side once. § 87(2)(g)

§ 87(2)(g)
[Redacted]
[Redacted]
[Redacted]

NYPD Patrol Guide Procedure 203-11 (encl. 1a-x) states that officers are to use the “minimum” of physical force necessary in effecting the arrest of individuals and that “EXCESSIVE FORCE WILL NOT BE TOLERATED.” § 87(2)(g)

[Redacted]
[Redacted]
§ 87(2)(g)
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Allegation L: Near the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Vito Nicoletta threatened to arrest § 87(2)(b)

§ 87(2)(b) said that Officer Nicoletta threatened to arrest her if she walked on § 87(2)(b) following the arrest of § 87(2)(b) stating, “I don’t care, if you walk there we’ll lock you up and throw you in the cells.” Officer Kirton corroborated the statements of § 87(2)(b) and § 87(2)(b) that she presented identification to an officer at the alleged point in the incident at which the threat of arrest occurred. § 87(2)(g)

[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Allegation M: At the 75th Precinct stationhouse, Officer Mack Lipinski strip-searched § 87(2)(b)

§ 87(2)(b) stated that Officer Lipinski conducted a strip search of him, ordering § 87(2)(b) to drop his pants. § 87(2)(g)

[Redacted]
[Redacted]
NYPD Patrol Guide Procedure 208-05 (encl. 1t-u) states that officers may conduct a strip search of a prisoner when they have reason to believe that the prisoner may be concealing additional contraband or evidence on his or her person. § 87(2)(g)

[Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g), § 87(4-b)

[Redacted]
[Redacted]

[Redacted]
[Redacted]
[Redacted]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: